

25AVCV00364 25AVCV00364

County: los-angeles

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Case Number: 25AVCV00364 Hearing Date: August 18, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

KELLI ROSE,

Plaintiff,

v.

GENERAL MOTORS, LLC.; and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00364

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 18, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a case arising under the Song-Beverly Consumer Warranty Act (Song-Beverly Act). Defendant General Motors, LLC (Defendant) demurs to the first, second, and third causes of action within the Second Amended Complaint (SAC).

On March 19, 2025, Plaintiff Kelli Rose (Rose) filed a complaint against Defendant, asserting five causes of action for (1) Violation of Civil Code section 1793.2, subdivision (d), (2) Violation of Civil Code section 1793.2, subdivision (b), (3) Violation of Civil Code section 1793.2, subdivision (a)(3), (4) Breach of the Implied Warranty of Merchantability (Civil Code sections 1791.1, 1794, 1795.5), and (5) Fraudulent Inducement – Concealment.

Plaintiff alleges that on May 24, 2018, Plaintiff entered into a warranty contract with Defendant regarding a 2018 Chevrolet Malibu, which was manufactured and distributed by Defendant. (Compl., ¶ 6.) Plaintiff asserts Defendant provided various warranties in connection with the sale, but after purchase and during the applicable warranty period, defects and nonconformities manifested in the Vehicle. (Compl., ¶¶ 7, 11.) Plaintiff further asserts that Defendant had a duty to promptly offer to repurchase or replace the Vehicle after a reasonable number of repair attempts but failed to do so. (Compl., ¶¶ 14-15.)

On July 7, 2025, Defendant demurred to the complaint.

On October 14, 2025, Plaintiff filed a first amended complaint (FAC) asserting the same causes of action, and the demurrer was subsequently taken off calendar.

On February 11, 2026, Defendant's demurrer to the FAC was sustained in part with leave to amend as to the first, second, and third causes of action, and overruled in part as to the fourth and fifth causes of action.

On March 16, 2026, Plaintiff filed the operative second amended complaint (SAC).

On April 27, 2026, Defendant filed the present demurrer.

On August 5, 2026, Plaintiff filed an opposition to the demurrer.

II. Preliminary Procedural Issues

Meet and Confer Requirement – Before filing a demurrer, the demurring party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve with the demurrer a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading demurred to failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Here, Defense counsel Kristen Allison has provided a Declaration in which she states on April 15, 2026, counsel for Defendant met and conferred with Plaintiff's counsel, Jacob Lister of Strategic Legal Practices, telephonically regarding Defendant's intended demurrer to the SAC, including the specific grounds for the demurrer, but the parties were unable to resolve the issues. (Allison Decl., ¶ 2.) The Court finds the meet and confer requirement is satisfied.

III. Legal Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 126.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

IV. Discussion

Application – Defendant demurs to the first, second, and third causes of action in the SAC pursuant to Code of Civil Procedure section 430.10, subdivision (e) on the ground that they fail to state facts sufficient to constitute a cause of action, as they are time-barred by the statutes of repose and limitations found in Code of Civil Procedure section 871.21. (Demurrer, p. 1:2-8, 2:6-8.)

a. Application of The Statutes of Repose and Limitations Pursuant to § 871.21

Code of Civil Procedure section 871.21, subdivision (a) establishes a one year statute of limitations and mandates that “[a]n action covered by Section 871.21 shall be commenced within one year after the expiration of the applicable express warranty period.” Section 871.21 also establishes a statute of repose, which states that notwithstanding the one year statute of limitations, “an action covered by Section 871.20 shall not be brought later than six years after the date of the original delivery of the motor vehicle.” (Code Civ. Proc., § 871.21, subd. (b).)

Actions covered by Section 871.20 include actions “brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” (Code Civ. Proc. § 871.20, subd. (a).) This six year repose period is tolled in only three circumstances: (1) as provided by section 1793.22, subdivision (c), (2) when the vehicle is out of service for repair of any nonconformity, and (3) for up to 60 days after plaintiff provides a pre-suit notice to the manufacturer. (Code Civ. Proc., § 871.21, subd. (c).)

Defendant contends that the first, second, and third causes of action are subject to the statutes of limitation and repose set forth in Code of Civil Procedure section 871.21.

Plaintiff argues in opposition that the Court cannot apply Section 871.21 to the present case, relying heavily on *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120. Specifically, Plaintiff asserts that retroactive application of the imposition of a statute of repose, or shortening of a statute of limitations, is a violation of constitutional principles of due process and that Plaintiff is entitled to a reasonable time to file suit after the effective date of the statute. (Opp., p. 3:23-4:12.) The Court is unpersuaded by this argument.

First, Code of Civil Procedure section 871.21 became effective on January 1, 2025, rendering it operative at the time Plaintiff filed her original complaint. Second, the cases Plaintiff cites to in support of her argument against retroactivity are either unpublished or do not pertain to Code of Civil Procedure section 871.21, and are thus both factually and procedurally distinguishable and inapplicable. Third, Code of Civil Procedure section 871.30, subdivision (a) states:

“Within 30 days of the effective date of the act adding this section [i.e., by May 1, 2025], a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.”

(Emphasis added.) It is undisputed that Defendant opted into these new procedures after Plaintiff filed her complaint and before May 1, 2025. Plaintiff does not allege in her SAC, nor argue in opposition, that Defendant did not opt in to Section 871.21. As the statute expressly applies to sales of motor vehicles in years prior to 2025, the Legislature provided that the statute would apply retroactively.

Fourth, the Court has already rejected Plaintiff’s argument. As the Court determined in its order on the previous demurrer:

Cal. Code Civ. Proc. § 871.30(a) expressly permits a manufacturer to elect to be governed by Chapter 12 for all actions described in section 871.20(a) “with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.” (See Cal. Code Civ. Proc. § 871.30(a) (emphasis added).) As discussed, ante, the opt-in provision was not in effect at the time of this filing; however, alternatively, after the opt-in provision came into effect, once Defendant opted-in pursuant section Cal. Code Civ. Proc. § 871.29, the Subject Vehicle would be subject to these provisions. (Cal. Code Civ. Proc. § 871.30.) Accordingly, Plaintiffs have not demonstrated that the applicable statute of repose does not govern the limitations period for at least the first and second causes of action.

(Statement of Decision, 2/11/26, p. 6.)

Finally, the Court notes that the enactment of AB1755 was not a surprise. Plaintiff had from September 2024 to January 1, 2025 to file her claim as to a vehicle she purchased over seven years before the effective date of the new statutory scheme and failed to do so. Therefore, the Court will apply Section 871.21 in the manner intended by the Legislature, i.e., Section 871.21 is applicable to this case and was effective at the time the complaint was filed.

Plaintiff also argues that the statute of repose in Section 871.21, subdivision (b) is not, in fact, a statute of repose, as it explicitly allows tolling. (Opp., p. 7:4:13-15.) The Court again rejects Plaintiff’s argument. Plaintiff cites to no law in support of this argument, and the Court is aware of none. While statutes of repose are not generally subject to statutory or equitable tolling, the Court declines to adopt the position that where provisions in a statute of repose permit specified tolling in limited circumstances, the statute loses its characterization of a statute of repose altogether. (See *MACH-1 RSMH, LLC v. Darras* (2024) 103 Cal.App.5th 1288, 1302.)

Finally, as to the applicability of Section 871.21, Plaintiff argues it does not apply to the Section 1793.2, subdivision (a)(3) cause of action as it is not an action covered by Section 871.20. (Opp., p. 4:24-5:5.) The Court has already expressly rejected this argument in its order from Defendant’s demurrer to the FAC. As stated previously:

Cal. Code Civ. Proc. § 1793.2(a)(3) states that "[e]very manufacturer of consumer goods sold state and for which the manufacturer has made an express warranty shall . . . [m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, §1793.2(a)(3).) Enforcement of this section occurs in Cal. Civ. Code § 1974. Plaintiffs expressly allege:

Defendant GM's failure to comply with its obligations under Civil Code section 1793.2, subdivision (a)(3) was willful, in that Defendant GM knew of obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant GM failed to take any action to correct its failure to comply with the law. Accordingly, Plaintiffs are entitled to a civil penalty of two times Plaintiffs' actual damages, pursuant to Civil Code section 1794(c).

(FAC at ¶ 40.)

Claims for the enforcement of warranties under section 1794 explicitly fall within the covered claims defined by Code Civ. Proc., §871.20. (Code Civ. Proc. § 871.20(a).) Thus, Plaintiffs' Third Cause of Action (Violation of Subdivision (a)(3) of Cal. Civ. Code § 1793.2) falls within the scope of section 871.21 and must have been "commenced within one year after the expiration of the applicable express warranty." (Cal. Code Civ. Proc. § 871.21(a).)

(Statement of Decision, 2/11/26, p. 5-6.)

The exact same language relied upon by the Court in its prior ruling as to the applicability of Section 871.21 on the third cause of action is present in the SAC. (See SAC, ¶ 58.) The Court thus reiterates its finding that all three causes of action arising under Civil Code section 1793.2, subdivisions (a)(3), (b), and (d) expressly fall under Code of Civil Procedure section 871.20, and thus, are subject to the statutes of limitations and repose set forth in Section 871.21, subdivisions (a) and (b).

Therefore, the action must have been brought within one year after the expiration of the applicable express warranty, and shall not have be brought later than six years after the date of original delivery of the Vehicle, unless Plaintiff can prove tolling applies for a period of 299 days. (Code Civ. Proc., § 871.21, subd. (a)-(b).)

b. Tolling of the Statutes of Limitations and Repose Pursuant to § 871.21

Defendant argues that no tolling applies. Specifically, Defendant argues that Plaintiff does not allege that any of the three tolling circumstances delineated in Section 871.21, subdivision (c) apply and the SAC fails to allege any specific facts warranting equitable tolling, does not state what class action tolls the present action, does not allege specific facts to support delayed discovery, alleges only facts related to the repair doctrine arising after the Vehicle was outside the express warranty period, and the tolling pursuant to the equitable estoppel doctrine applies only to the fraud claim, which is not subject to this demurrer. (Demurrer, p. 6:10-21.)

In opposition, Plaintiff argues that Section 871.21 does not exclude equitable tolling doctrines, such as the delayed discovery rule. (Opp., p. 5:15-18.)

i. Statute of Repose

Defendant argues that because Plaintiff entered into the warranty contract for the vehicle on May 24, 2018 (presumably the delivery date), then the six-year statute of repose period expired on May 24, 2024. (Demurrer, p. 5:4-7.) Thus, because Plaintiff filed this action after the expiration of the statute of repose period and after enactment and effective date of Section 871.21 on January 1, 2025, Plaintiff's causes of action are time-barred by the statute of repose. (Demurrer, p. 5:7-13.)

As to tolling for the statute of repose, generally, “[s]tatutes of repose effect a legislative judgment that a defendant should ‘be free from liability after the legislatively determined period of time.’ [Citations.] Like a discharge in bankruptcy, a statute of repose can be said to provide a fresh start or freedom from liability.” (PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017) 14 Cal.App.5th 156, 176 [citations omitted].) A statute of repose limits the time within which an action may be brought, and begins to run when a special event occurs, even if no cause of action has accrued, any injury has resulted, or the plaintiff has not discovered the wrongdoing or injury giving rise to the causes of action. (Id at 177 (emphasis added.)) A statute of repose extinguishes the plaintiff’s right to bring an action after the period has elapsed, and the plaintiff bears the burden of pleading facts showing his or her substantive right has not been extinguished by a statute of repose. (Ibid.)

The Court finds that minimal tolling applies to the statute of repose. As to the three circumstances in which the statute of repose may be tolled pursuant to Section 871.21, subdivision (c), Plaintiff does not plead in the SAC that there was any third-party dispute resolution process related to this matter to bring it under the purview of tolling provided by section 1793.22, subdivision (c), nor that any pre-suit notice was provided to Defendant that would permit tolling up to 60 days. The SAC pleads that the Vehicle was out of service for repair of nonconformity for a total of approximately 43 days. (SAC, ¶¶ 25-28.) This would toll the deadline to file suit to Monday, July 8, 2024, over a year and a half before Plaintiff filed the initial complaint. However, as discussed, Plaintiff actually had until December 31, 2024 to file suit to avoid the imposition of the statute of repose, and failed to do so. Even if the Court were to apply the minimal tolling to this date, Plaintiff then would have had only until February 12, 2025 to file, and so the Complaint still would be untimely. Furthermore, statutes of repose are not subject to equitable tolling. (See Fnb Mortgage Corp. v. Pac. General Corp. (1999) 76 Cal.App.4th 1116, 1132-33; PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017) 14 Cal.App.5th 156, 178 [unlike statutes of limitations, statutes of repose generally are not subject to statutory or equitable tolling]; MACH-1 RSMH, LLC v. Darras (2024) 103 Cal.App.5th 1288, 1302.) It is just as clear and well-established that neither the delayed discovery rule nor any other equitable tolling mechanism is applicable to statutes of repose.

The Court thus finds that all three causes of action are time-barred by the six-year statute of repose.

ii. Statute of Limitations

As to the statute of limitations, pursuant to Code of Civil Procedure section 871.21, subdivision (a), Defendant argues that because the three-year bumper to bumper and five-year powertrain express warranties expired on May 24, 2021 & May 24, 2023 respectively, assuming the date Plaintiff entered into the express warranty was the original delivery date of the Vehicle, the statute of limitations ran, at the latest, on May 24, 2024. (Demurrer, p. 5:14-19.)

Plaintiff alleges that any applicable statutes of limitations are tolled by equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling, as the Defendant’s alleged misconduct was discovered shortly before the complaint was filed following failed repair attempts. (SAC, ¶¶ 31-32.)

Defendant contends that the applicable warranties underlying Plaintiffs’ claims are: (1) a 3-year bumper to bumper express warranty, and (2) a five-year powertrain warranty. Plaintiff does not provide an alternative for applicable express warranties in her opposition.

As alleged, Plaintiff entered into the warranty contract with Defendant on or about May 24, 2018 (SAC, ¶ 6) and “(d)efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to engine defects, transmission defects, electrical defects, among other defects and non-conformities” (SAC, ¶ 11).

Plaintiff’s SAC alleges that the following defects and nonconformities arose in the warranty period: (1) March 25, 2020 for drivability concerns, (2) January 10, 2022 for engine complaints, (3) November 10, 2022 for engine and cooling complaints, (3) March 14, 2024 for unspecified repairs. (Compl., ¶¶ 25-28.)

Plaintiff includes the warranty in the SAC as Exhibit A. Exhibit A provides the following:

New Vehicle Limited Warranty Bumper-to-Bumper (Includes Tires)

- Coverage is for the first 3 years or 36,000 miles, whichever comes first.

Powertrain

- Coverage is provided for 5 years or 60,000 miles, whichever comes first.

(Compl., Ex. A, p. 2.)

The Court is not provided with the mileage of the Vehicle and uses the years to compute the statute of limitations. Three years from May 24, 2018 is May 24, 2021. Thus, the statute of limitations for the express bumper-to-bumper warranty appears to have expired May 24, 2022. Regarding the statute of limitations for the express powertrain warranty, five years from May 24, 2018 is May 24, 2023. The statute of limitations for the express powertrain warranty appears to have expired on May 24, 2024.

With respect to the three Causes of Action subject to Section 871.21, Plaintiff raises the possibility of equitable tolling. Defendants counter that equitable tolling is precluded by Cal. Civ. Proc. Code, § 871.21(c), which provides that the time limits under the statute "shall be tolled" under certain circumstances, and that none of those circumstances apply here. Defendant's argument would make sense if Section 871.21(c) stated that the time limitations "shall only be tolled" under certain circumstances, but it doesn't. Rather, Section 871.21(c) describes those circumstances under which a court must, or "shall," toll the time limitations, and not those circumstances under which a court may toll the time limitations. The Court finds that Section 871.21(c) does not preclude tolling for equitable tolling for the statute of limitations (as opposed to the statute of repose) under the appropriate circumstances.

However, to invoke equitable tolling of the statute of limitations, Plaintiff must plead (1) timely notice to defendant; (2) lack of prejudice; and (3) Plaintiff's reasonable and good faith conduct. (*McDonald v. Antelope Valley Community College Dist.* (2008) 45 Cal.4th 88, 102.)

Plaintiff has not adequately alleged a means to toll the statute of limitations beyond the 43 days the Vehicle was down for service, as the FAC contains many conclusory claims. For example, Plaintiff cites the tolling rule for class actions but makes no allegations as to any pending class actions that would affect the instant claims. (SAC, ¶ 31.) Plaintiff alleges that Defendant concealed the defects, minimized the scope, cause, and dangers of the defects with inadequate TSBs and/or Recalls, but does not allege any specific conduct or identify or describe any TSBs or Recalls. (SAC, ¶ 40.)

Furthermore, pursuant to the delayed discovery doctrine, the three-year limitations period may be tolled until the aggrieved party suspects or should suspect that her injury is caused by wrongdoing. (*Brandon G. v. Gray* (2003) 111 Cal.App.4th 29, 35.) "A plaintiff whose complaint shows on its face that his or her claim would be barred by the applicable orthodox statute of limitations, and who intends to rely on the discovery rule to toll the orthodox limitation period, 'must specifically plead facts which show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. [Citations.] Mere conclusory assertions that delay in discovery was reasonable are insufficient and will not enable the complaint to withstand general demurrer. [Citation.]' [Citations.]" (*Camsi IV v. Hunter Tech. Corp.* (1991) 230 Cal.App.3d 1525, 1536-1537.)

Here, Plaintiff alleges she did not discover Defendant's fraudulent conduct until "shortly before the filing of the complaint" because "the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful repair attempts..." (SAC, ¶ 32.) Nevertheless, these allegations are too uncertain to overcome the heightened pleading requirement for fraud and the delayed discovery rule. (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 899 ["When a plaintiff alleges the fraudulent concealment of a cause of action, the same pleading and proof is required as in fraud cases: the plaintiff must

show (1) the substantive elements of fraud, and (2) an excuse for late discovery of the facts."].) "As for the belated discovery, the complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it or had no actual or presumptive knowledge of facts sufficient to put him on inquiry." (Ibid.) The SAC is insufficient in this regard.

The SAC lacks sufficient specific factual allegations justifying Plaintiff's late discovery of Defendant's purported fraudulent conduct with respect to the Vehicle. For example, the SAC was amended to provide detailed factual allegations as to repairs to the Vehicle in 2020, 2022, and 2024. However, the SAC is silent as to what the repair technicians shared or withheld from Plaintiff after each attempted repair. In effect, there is no way to infer from the SAC when, specifically, Plaintiff discovered Defendant's fraud or the circumstances under which it was discovered. Plaintiff also fails to specifically plead that she could not have discovered the Vehicle's unrepairable Defects earlier with reasonable diligence, and the additional facts alleged in the SAC appear to establish that Plaintiff was aware, or should have been aware, of the facts giving rise to her Song-Beverly causes of action in 2022, when Plaintiff presented the Vehicle numerous times for the same defect. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803 [under the delayed discovery rule, "the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action."].)

The SAC further alleges that Defendant is estopped from relying on any statutes of limitation because Defendant fraudulently concealed defects and refused to investigate or remedy said issues. (SAC ¶¶ 39-42.) Plaintiffs' conclusory statements of fraudulent concealment do not establish the elements for equitable tolling, and the fraudulent concealment cause of action is not at issue in this demurrer.

Ultimately, more factual specificity is required at the pleading stage for Plaintiff to successfully invoke the delayed discovery rule, class action tolling, equitable tolling, the repair rule, or equitable estoppel as a basis for tolling of the limitations period. Further, as discussed above, Plaintiff also has not provided any facts as to specific conduct by Defendant or identifying or describing any TSBs or Recalls.

Therefore, Plaintiff's SAC fails to plead sufficient facts to establish that the claims are not time-barred under the statute of limitations. In any event, the SAC alleges facts on its face that establish the Song-Beverly claims are time-barred under Code of Civil Procedure section 871.21, subsection (b)'s statute of repose, and fails to assert facts demonstrating that the six-year deadline is subject to tolling beyond the limited statutory tolling discussed above. Plaintiff has made no showing that there is any reasonable possibility of amendment, and the Court finds that, in light of the factual allegations as currently pled, there is no possibility of amendment such that Plaintiff can maintain these causes of action.

Therefore, Defendant's demurrer is SUSTAINED as to the first, second, and third causes of action without leave to amend.

V. Conclusion

Defendant General Motors, LLC's Demurrer to the Second Amended Complaint is SUSTAINED without leave to amend